Quarterly report: Q3 2026

Australia's merger regime, 1 July 2026 – 30 September 2026

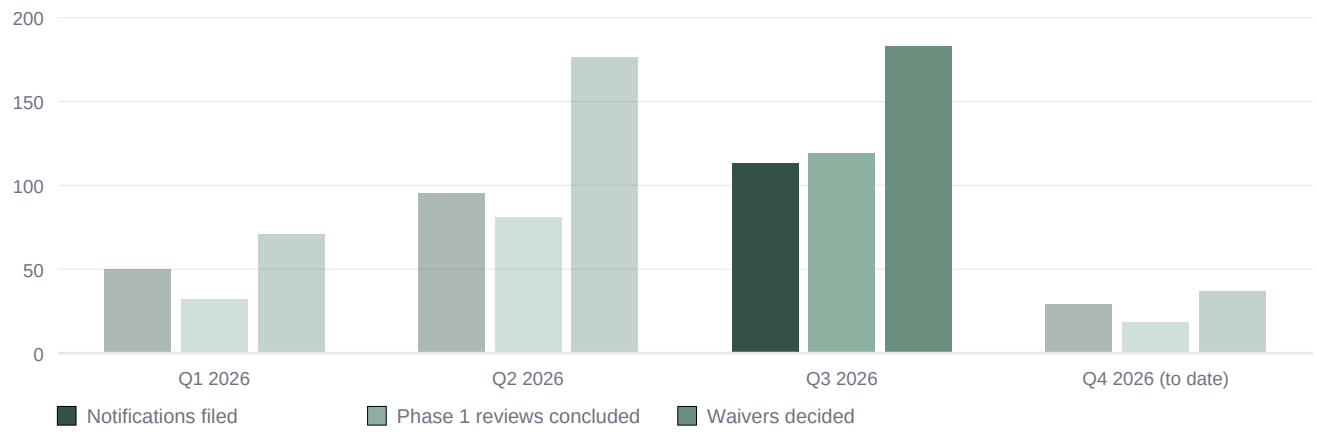
NOTIFICATIONS FILED	WAIVERS DECIDED	PHASE 1 MEDIAN	WAIVER MEDIAN
113	**183**	**18** business days	**17** business days
+19% on Q2 2026	+4% on Q2 2026	1 day slower than Q2 2026	5 days slower than Q2 2026

THE QUARTER IN BRIEF

- 113 notifications filed, up 19% on Q2 2026, and 183 waiver applications decided, up 4% on Q2 2026.
- Phase 1 reviews concluded in a median 18 business days, 1 day slower than Q2 2026; waivers in 17, 5 days slower than Q2 2026.
- Notifications filed had spent an estimated median 16 business days in pre-notification, 1.5 days longer than Q2 2026.
- 96% of waivers were granted and 97% of phase 1 reviews ended in approval.
- 3 matters referred to phase 2; 5 phase 2 reviews concluded (3 not approved, 2 assessment ceased).

Volume by quarter

Waivers reach the ACCC's register only once decided, so they are counted when decided



Waivers

CLEARANCE RATE

96%

176 of 183 approved

Average when granted	**16.1 business days**
Average when refused	**18.9 business days**
Refused	**7**

3 of 7 refused waivers have since been re-filed as a notification.

Notifications – phase 1

CLEARANCE RATE

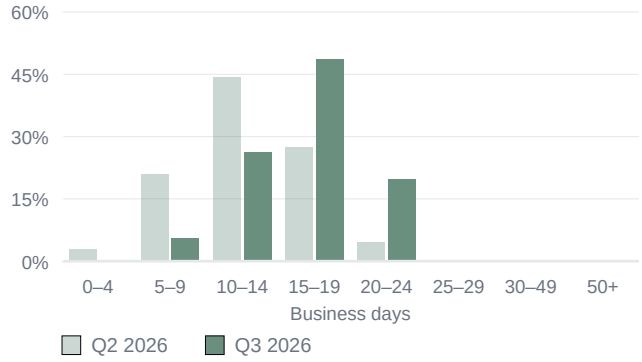
97%

116 of 119 approved

Average when approved	**20.4 business days**
Average when referred	**42 business days**
Referred to phase 2	**3**
Ceased in phase 1	**2**

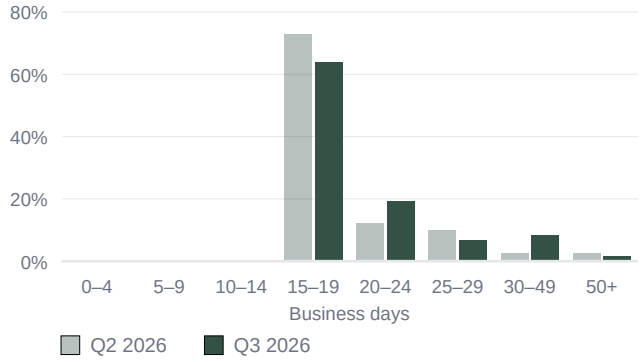
Waiver timing

Share of decisions by business days taken – median 17 business days, 90% within 21 business days



Phase 1 timing

Share of decisions by business days taken – median 18 business days, 90% within 33 business days



Pre-notification

Estimated time the 113 notifications filed this quarter spent with the ACCC before filing, as a share of those notifications

MEDIAN

16 business days

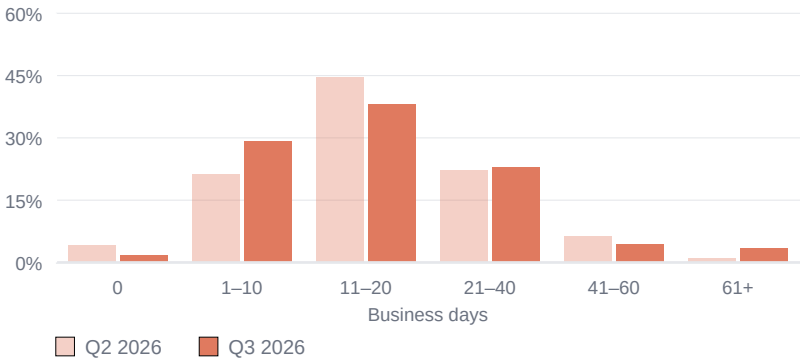
1.5 longer than Q2 2026

AVERAGE

19.2 business days

90% WITHIN

36 business days



Pre-notification never appears on the register. It is estimated from the order the ACCC issued case numbers in, so the figures for the latest filings can still move as later case numbers appear.

Where the deals were

Notifications filed and waivers decided, by ANZSIC division

Financial and Insurance Services	129
Professional, Scientific and Technical Services	78
Manufacturing	77
Retail Trade	43
Wholesale Trade	38

47% involved an overseas-registered acquirer or target (139 of 296). A party counts when the register gives it a foreign registration number, or no ABN or ACN and an overseas legal form (Inc, GmbH, S.p.A.…); unclear cases are left out, so this is a floor.

Beyond phase 1

Phase 2 referrals and outcomes, public benefit applications, and Tribunal and court reviews

01 Jul 2026	**Phase 2 outcome**	Coles – supermarket and liquor site in Kalgoorlie, WA · Not approved
02 Jul 2026	**Referred to phase 2**	Saipem S.p.A - Subsea7 S.A.
10 Jul 2026	**Phase 2 outcome**	Trescal – TR Calibration · Assessment ceased
15 Jul 2026	**Tribunal review sought**	Coles – supermarket and liquor site in Kalgoorlie, WA · Coles

16 Jul 2026	**Phase 1 review ceased**	Regis Resources - Vault Minerals
17 Jul 2026	**Federal Court review sought**	Coles – supermarket and liquor site in Kalgoorlie, WA · Coles
17 Jul 2026	**Referred to phase 2**	Zoetis – Neogen Genomics Business
07 Aug 2026	**Phase 2 outcome**	MicroStar Logistics - Konvoy · Not approved
18 Aug 2026	**Referred to phase 2**	Vets Central – Hills Veterinary Centre
26 Aug 2026	**Phase 1 review ceased**	Journey Beyond - SeaLink Rottnest
28 Aug 2026	**Phase 2 outcome**	Vets Central – Hills Veterinary Centre · Assessment ceased
23 Sep 2026	**Phase 2 outcome**	Insurance Australia Group – RAC Insurance · Not approved

Notes

Decisions count in the quarter they were made; notifications in the quarter they were filed. Waivers reach the ACCC's register only once decided, so they are counted when decided. Phase 1 timing runs from notification to the phase 1 determination, or to the referral for a matter sent to phase 2. All durations are business days, as the statutory clocks count them.